

Court No. - 32

Case :- WRIT - C No. - 41507 of 2019

Petitioner :- Mahesh Chandra

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Vinay Kumar Pandey

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shamim Ahmed,J.

This writ petition, inter alia, has been filed for the following relief:

"(I) Issue writ or direction in the nature of mandamus commanding and directing the respondent no. 2 take appropriate decision on the application/appeal of petitioner dated 11.10.2019 which is still pending before respondent no.2."

Learned counsel for the petitioner has submitted that the final assessment order has been passed without giving any opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code 2005 and the respondents are taking coercive action against the petitioner. He further submits that in compliance of the earlier order of this court dated 26.8.2019 passed in the writ petition petition, being Writ-C No. 24867 of 2019, the

petitioner has filed an appeal /application before the respondent no. 2 Executive Engineer on 25.10.2019 and the same is still pending before it.

Learned counsel for the electricity department has submitted that the petitioner has an alternative and efficacious statutory remedy by way of an appeal under Section 127 of the Act for redressal of his grievance before the appellate authority. Instead of filing the appeal before the competent authority, the petitioner has filed the appeal before the respondent no.2 which has no jurisdiction to hear the said appeal. Learned counsel for the petitioner has not been able to rebut the contention so made by the learned counsel for the electricity department.

Heard learned counsel for the petitioner, Mr. Baleshwar Chaturvedi, learned counsel for the electricity department and perused the record.

Admittedly, for redressal of his grievance, the petitioner has an alternative statutory remedy of appeal under Section 127 of the Act before the appellate authority. The respondent no.2, Executive Engineer has no jurisdiction to entertain the said appeal filed by the petitioner.

The petitioner may, if so advised, file an appeal against the final order under section 127 of the U P Electricity Act before the appropriate authority within two weeks from today along

with a certified copy of this order and if any such appeal is filed by the petitioner, the concerned appellate authority shall decide the same on merits preferably within four weeks from the date of filing of the said appeal in accordance with law without reference to the period of limitation, if the appeal is filed within the time as indicated herein above.

For a period of six weeks, no coercive measures shall be taken against the petitioner with respect to amount sought to be recovered under the impugned recovery certificate.

It is made clear that this Court has not expressed any opinion on the merits of the case. The petitioner, if prefers an appeal under Section 127 of the Act before the appellate authority, the appellate authority shall consider the matter on its own merits.

With the above observations, the present writ petition stands finally disposed of.

Order Date :- 16.12.2019

MLK